

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3761

By: Turner

AS INTRODUCED

An Act relating to schools; prohibiting public schools and school districts from being members of any association or organization who have certain diversity, equity, and inclusion practices; requiring public schools and school districts conduct a review of their memberships for compliance; requiring public schools and school districts send notice of termination for noncompliance if the association or organization does not cure noncompliance within fifteen calendar days; directing public schools and school districts to send certificate of compliance to the State Board of Education; authorizing State Board of Education to promulgate rules; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 24-166 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. No public school or school district shall be a member of any association or organization who:

1. Grants or supports diversity, equity, and inclusion positions, departments, activities, procedures, or programs to the extent they grant preferential treatment based on one person's

1 particular race, color, ethnicity, or national origin over
2 another's;

3 2. Has any policy promoting diversity, equity, and inclusion;

4 3. Mandates any applicant for employment provide a diversity,
5 equity, and inclusion statement; or

6 4. Gives any applicant for employment or member for a position
7 within the association or organization preferential consideration
8 based on diversity, equity, and inclusion.

9 B. After the effective date of this act, public schools and
10 school districts shall initiate a review of all memberships with any
11 association or organization for compliance with subsection A of this
12 section. If the public school or school district finds that any
13 association or organization is not in compliance with subsection A
14 of this section, the public school or school district shall provide
15 notice to the association or organization that the public school or
16 school district will terminate the membership if the association
17 does not cure the noncompliance with subsection A of this section
18 within fifteen (15) calendar days.

19 C. By July 1, 2026, and each July 1 thereafter, public schools
20 and public school districts shall electronically submit to the State
21 Board of Education a certificate of compliance with the provisions
22 of this section.

23 D. The State Board of Education may promulgate rules to
24 implement the provisions of this section.

SECTION 2. It being immediately necessary for the preservation
of the public peace, health or safety, an emergency is hereby
declared to exist, by reason whereof this act shall take effect and
be in full force from and after its passage and approval.

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